

Smt. Shruti vs Manoj Kumar Singh on 20 March, 2026

Author: Anuradha Shukla

Bench: Vishal Dhagat, Anuradha Shukla

NEUTRAL CITATION NO. 2026:MPHC-JBP:25600

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IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR
BEFORE
HON'BLE SHRI JUSTICE VISHAL DHAGAT
&
HON'BLE SMT. JUSTICE ANURADHA SHUKLA
ON THE 20th OF MARCH, 2026
REVIEW PETITION No. 544 of 2026
SMT. SHRUTI
Versus
MANOJ KUMAR SINGH

Appearance:

Smt. Sushma Pandey - Advocate for the petitioner.
Shri Sanjay Pandey, - Advocate for the respondent.

ORDER

Per: Justice Smt. Anuradha Shukla Petitioner-wife has preferred this review petition for restoration of First Appeal No.1646/2024 decided on 10.12.2024, claiming that the impugned order was not passed on merits. Under that order, first appeal filed by appellant-wife challenging the judgment and decree passed by Third Additional Principal Judge, Family Court, Jabalpur, on 06.07.2024 in RCSHM No.1218/2023 was dismissed holding that appeal was rendered infructuous.

2. Facts in brief are that the divorce petition filed by respondent- husband was allowed vide judgment and decree passed in RCSHM No.1218/2023 and petitioner-wife failed to contest the divorce petition for having been proceeded against ex parte. She preferred First Appeal NEUTRAL CITATION NO. 2026:MPHC-JBP:25600 2 RP-544-2026 No.1646/2024, which was decided after hearing both the sides and the first appeal was dismissed vide order under review.

3. In this review petition, which was filed in the form of restoration application, the grounds primarily refer to the errors committed by the Judge of Family Court in allowing the divorce decree. According to these grounds, petitioner was not given reasonable opportunity to contest the divorce petition; divorce decree was passed without any justifiable reason; respondent-husband himself was the guilty party treating the wife with cruelty and withdrawing without any reasonable cause from her company; denying her maintenance; and, thus, compelling her to live along with her two

children in her parents house. The review petition, apparently drafted in the form of restoration application, makes a request that first appeal may be restored on original number as if it was not decided on merits.

4. Counsel for both the parties have been heard and the record has been perused

5. First Appeal No.1646/2024 was decided on 10.12.2025 in following terms:

"2. Learned counsel appearing for respondent has filed an affidavit and copy of marriage certificate of respondent. Respondent did second marriage on 09.07.2025. Decree of divorce was passed in favour of respondent on 06.07.2024. Thereafter, appellant had filed appeal before High Court. Said appeal was dismissed on 08.01.2025. Appellant filed an application for restoration of appeal and said application was allowed on NEUTRAL CITATION NO. 2026:MPHC-JBP:25600 3 RP-544-2026 22.08.2025. It is submitted that no appeal was pending before High Court between 06.07.2024 to 22.08.2025. During this intervening period, respondent had done second marriage on 09.07.2025. In view of same, judgment passed by Apex Court in case of Krishnaveni Rai Vs. Panja Rai reported in (2020) 11 SCC 253, appeal filed by appellant has become infructuous.

3. Learned counsel appearing for appellant was given certificate of marriage issued by Health Officer (Municipal Corporation), Jabalpur on 11.08.2025 in which it has been mentioned that respondent had married on 09.07.2025. Since, second marriage was done by respondent when no appeal was pending, therefore, right to remarry had accrued in his favour. He had remarried and now third party interest has also been created.

4. In view of same, first appeal has become infructuous and same is dismissed.

5. If appellant has any doubt about marriage certificate, she may verify the same from Office of Health Officer (Municipal Corporation), Jabalpur and if appellant finds that no such certificate has been issued then she will be at liberty to file review petition."

6. The order passed in aforesaid terms in the first appeal leaves no room for doubt that the reason for dismissal of appeal was not any want of prosecution but, it was dismissed after considering the viability of appeal in the context of provision of Section 15 of Hindu Marriage Act and the cited NEUTRAL CITATION NO. 2026:MPHC-JBP:25600 4 RP-544-2026 case law. These facts lead to natural conclusion that first appeal was not at all dismissed for want of prosecution. The appellate Court, while dismissing the first appeal, had given a liberty to the petitioner-wife that if she entertains any doubt about marriage certificate, she may get it verified from the Office of Health Officer (Municipal Corporation), Jabalpur, and on finding that no such certificate was issued, she may file the review petition. The present review petition has not been filed in respect of liberty given. As discussed earlier, the present petition is evidently not a review petition but a restoration application.

7. The first appeal, decided after considering its maintainability on legal aspects, can be assailed only on the questions related to maintainability and cannot be considered as an appeal dismissed for want of prosecution. In consequence, this review petition is dismissed for the reason that no apparent error on the face of the record has been pointed out by the petitioner-wife nor she has been able to prove any subsequent events or discovery of new fact/evidence which would render the dismissal order under subject as unsustainable.

8. Review petition is accordingly dismissed and disposed of.

9. Let a copy of the order be annexed with the record of First Appeal No.1646/2024.

(VISHAL DHAGAT)
JUDGE

(ANURAD
J

ps/(ra)